



## **Mutual NDA**

## **iNXT BrokerVerse OOTB**

Prepared by – **iorta TechNXT**

Version – **1.0**

Date – **03 October 2026**

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# 1. Document Control

| Date            | Version | Author & Business Unit Info | Reviewed By & Business Unit Info | Approved By & Business Unit Info | Change History                                                           |
|-----------------|---------|-----------------------------|----------------------------------|----------------------------------|--------------------------------------------------------------------------|
| 03 October 2026 | 1.0     | iorta TechNXT Corp.         | Legal counsel (to be completed)  | To be completed                  | Template for discussion; subject to review by the parties' legal counsel |

# 2. Acronyms

| Acronym / Symbol | Definition / Meaning                |
|------------------|-------------------------------------|
| DPA              | Data Privacy Act of 2012 (RA 10173) |
| NDA              | Non-disclosure agreement            |
| NPC              | National Privacy Commission         |
| RA               | Republic Act                        |
| SEC              | Securities and Exchange Commission  |
|                  |                                     |

# 3. About this template

Template for discussion; subject to review by the parties' legal counsel.

This Mutual Non-Disclosure Agreement (the **NDA**) protects information that iorta TechNXT Corp. and a prospective client exchange before and during demonstrations, discovery and commercial discussions of iNXT BrokerVerse. It is short by design and can be signed before the first demonstration. Text in [square brackets] is a placeholder.

## 4. Agreement

### 4.1 Parties

This NDA is made on [date] between:

1. **iorta TechNXT Corp.**, SEC registration no. [number], with principal office at [address], represented by [name, title] (**iorta TechNXT**); and
2. **[Company legal name]**, SEC registration no. [number], with principal office at [address], represented by [name, title] (the **Company**).

Each is a **Party**. A Party that discloses information is the **Discloser**; a Party that receives it is the **Recipient**.

### 4.2 Purpose

The Parties wish to exchange information to evaluate a possible business relationship for the licensing, implementation, hosting and support of iNXT BrokerVerse by the Company (the **Purpose**), including demonstrations of the platform, workshops on the Company's processes, and commercial proposals.

### 4.3 Confidential Information

1. **Confidential Information** means all information disclosed by the Discloser to the Recipient for the Purpose, in any form (oral, written, electronic, visual, or by access to a demonstration system), whether before or after the date of this NDA, that is marked or identified as confidential or would reasonably be understood to be confidential. It includes: the iNXT BrokerVerse platform, its screens, designs, documentation, source code, architecture and roadmap; pricing, proposals and commercial terms; the Company's business processes, client and insurer information, volumes, financial information and systems; and the existence and content of the Parties' discussions.
2. Confidential Information does not include information that the Recipient can show: (a) is or becomes public without breach of this NDA; (b) was lawfully known to it before disclosure without a duty of confidence; (c) was received from a third party entitled to disclose it; or (d) was independently developed without use of the Confidential Information.

### 4.4 Obligations

The Recipient shall:

1. use the Confidential Information only for the Purpose;
2. not disclose it to anyone except its directors, officers, employees, affiliates and professional advisers who need to know it for the Purpose and are bound by confidentiality duties at least as protective as this NDA; the Recipient is responsible for their compliance;
3. protect it with at least the care it uses for its own confidential information, and no less than reasonable care;
4. not copy it except as reasonably needed for the Purpose;

5. not reverse engineer, decompile or attempt to derive the source code of any software or demonstration system made available, and not use it to develop a competing product;
6. notify the Discloser promptly of any unauthorised use or disclosure it becomes aware of.

#### **4.5 Disclosure required by law**

The Recipient may disclose Confidential Information to the extent required by law, a court order or a regulator (including the Insurance Commission, the Bureau of Internal Revenue and the National Privacy Commission), after giving the Discloser prompt prior notice where lawful, and disclosing only what is required.

#### **4.6 Personal data**

1. The Parties do not intend to exchange personal data under this NDA. Demonstrations use sample data.
2. If the Company wants a demonstration or a proof of concept with its own records, it first masks or removes personal data, or the Parties first sign a data processing agreement under the DPA and the issuances of the NPC.
3. Any personal data received in breach of point 1 is deleted by the Recipient on discovery and reported to the Discloser.

#### **4.7 Return and destruction**

Within 15 days of a written request, or of the end of the discussions, the Recipient returns or destroys the Confidential Information and confirms this in writing. The Recipient may keep copies required by law or in automatic back-up systems, which remain subject to this NDA.

#### **4.8 No licence and no obligation**

1. All Confidential Information remains the property of the Discloser. No licence or other right is granted under this NDA, except the limited right to use it for the Purpose.
2. Confidential Information is provided "as is". Neither Party makes any warranty on its accuracy or completeness in this NDA.
3. This NDA does not oblige either Party to enter into any further agreement. Any licence or services are governed only by a signed Master Services Agreement and Order Form.

#### **4.9 Non-solicitation**

During the discussions and for 6 months after they end, neither Party solicits for employment any employee of the other Party whom it met in connection with the Purpose, without the other Party's written consent. General advertisements are not a breach.

#### **4.10 Term**

This NDA applies to Confidential Information disclosed within [2] years from its date. The obligations of confidentiality last for [3] years from the date of each disclosure, and for trade secrets and source code for as long as they remain trade secrets.

#### **4.11 Remedies**

The Parties agree that a breach of this NDA may cause irreparable harm for which damages are not an adequate remedy. The Discloser may seek injunctive or other equitable relief from a competent court, in addition to any other remedy.

#### **4.12 Governing law and disputes**

This NDA is governed by the laws of the Republic of the Philippines. The Parties first try to settle any dispute by negotiation between senior executives within 30 days. Failing settlement, the dispute is submitted to the proper courts of [Makati City / Taguig City], to the exclusion of all other venues, without prejudice to urgent relief under the Remedies clause.

#### **4.13 General**

1. This NDA is the entire agreement on its subject and may be amended only in writing signed by both Parties.
2. Neither Party may assign it without the other's written consent.
3. It may be signed in counterparts and by electronic signature, which the Parties accept as valid under RA 8792 (Electronic Commerce Act of 2000).
4. If a provision is unenforceable, the rest remains in force.

## 5. Signatures

| For iorta TechNXT Corp. | For [Company legal name] |
|-------------------------|--------------------------|
| Signature: _____        | Signature: _____         |
| Name: [name]            | Name: [name]             |
| Title: [title]          | Title: [title]           |
| Date: [date]            | Date: [date]             |

## 6. Document Sign-Off

| Serial Number | Description                                                          | Owner         | Status |
|---------------|----------------------------------------------------------------------|---------------|--------|
| 1             | Review and completion by the parties' legal counsel before signature | iorta TechNXT | Closed |
|               |                                                                      |               |        |
|               |                                                                      |               |        |

| Sign Off Date | Signature | Approved By | Department & Project Role |
|---------------|-----------|-------------|---------------------------|
|               |           |             |                           |
|               |           |             |                           |
|               |           |             |                           |
|               |           |             |                           |





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